

Satate Election Commission

Horoscope

State Election Commission (Article 243K & 243ZA)

Appointment	Governor
Qualification	Subject to State Law
Tenure/age	Subject to State Law
Removal	Like a Judge Of HC
Reappointment	Subject to State Law
Further Employ.	Subject to State Law

1. Salary

- a. State Government Determines
- b. Not Charged on CFS
- c. Reduction not allowed

2. Power

- a. Delimitation of all the Constituencies
- b. Register, deregister political parties
- c.. Implements Model Code Of Conduct

3. Function

- a. Conducts Municipality & Panchayats Elections
- b. Superitendence, direction, control over preperation of electoral roll
- c. Updates Electoral Roll



Constitution of State Election Commission

Part IX- the panchayats and **Part IXA- the municipalities** of the Indian Constitution deal with rural local government and urban local government, respectively. **Article 243K** under Part IX & **Article 243ZA** under Part IXA deals with **State Election Commission** in every state.

Article 243K of the [Indian Constitution](#) states:

1. The State Election Commission will be responsible for the superintendence, direction and control of the electoral roll preparation for rural panchayats. It shall also be responsible for the conduct of elections to the rural Panchayats.
2. Subject to the rules of any law made by the State Legislature, **tenure of office** and the **conditions of service** of the State Election Commissioner shall be determined by the Governor.
3. The State Election Commissioner shall not be removed from office except in like manner and on the like grounds as a **High Court**. The conditions of service of the State Election Commissioner (SEC) shall not be varied to his disadvantage after his appointment.

Article 243ZA of the Indian Constitution states that:

1. Under Article 243ZA, the state election Commission will be responsible for the superintendence, direction and control of the electoral roll preparation for the election of the municipalities. It also conducts polls of the municipalities.
2. Subject to the provisions of the Constitution, the Legislature of a State may, through law, make provisions with respect to matters related to elections to the Municipalities.

Composition of State Election Commission

The State Election Commission comprises a state election commissioner and as many members and staff specified as **according to Acts of the respective State**. State Election Commissioners shall be independent persons not holding positions or offices in any State or Central Government organizations.

Appointment and Removal of the State Election Commission

The [Governor](#) appoints the state election commissioner. To ensure the autonomy and independence of the position, the state election commissioner **can only be removed from office** on the same grounds and manner specified for a **High Court judge**.

Powers and Functions of State Election Commission:

The State Election Commission has the following powers and functions:

1. The State Election Commission Conducts elections for **municipalities in the state**.
2. The autonomous body conducts elections for **panchayats in the state**.
3. **Implement a model code of conduct** in elections for local bodies.

4. It **updates Electoral rolls** with new additions.
5. The State Election Commission is also responsible for the **delimitation of constituencies for local bodies**, which is done before every general election of the local bodies.
6. The State Election Commission is also empowered to **register and deregister political parties** in the state to set up candidates for local body elections.

Comparison between the Election Commission of India (ECI) and the State Election Commission

Dimension	Election Commission of India	State Election Commission
Constitutional provision	Article 324 under Part XV	Article 243K under Part IX & Article 243ZA under Part IXA
Function and Power	Conducting elections of the President of India , Vice-President , members of Rajya Sabha , Lok Sabha , State Legislative Assembly and the Legislative Council fairly and transparently.	Conducting elections to the Local Self Government, which includes the rural Panchayati Raj Institutions and the Urban Local Bodies .
Qualification	According to the law made by the Parliament	According to the law made by the state legislature
Appointment	President	Governor
Term	6 years or until they turn 65 , whichever is earlier	According to the law made by the state legislature
Composition	Chief Election Commissioner and such other number of Election Commissioners as the President may fix .	State Election Commissioner and as many members and staff specified as are required by the Acts of respective State Governments
The annual Report is submitted to	President	Governor
Resign to	President	Governor
The chairman and members are removed by	President	Governor

Conditions for Removal	The chief election commissioner has secured tenure as he can only be removed from his office in the same manner and on the same grounds as a Supreme Court judge.	State Election Commissioner shall not be removed from office except in like manner and ground as a High Court Judge.
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Institutions for SC/ST/OBC and women's welfare in India

Key institutions for SC/ST/OBC and women's welfare in India include constitutional bodies like the National Commission for Scheduled Castes (NCSC), National Commission for Scheduled Tribes (NCST), National Commission for Backward Classes (NCBC), and the National Commission for Women (NCW). These bodies, supported by the Ministry of Social Justice and Empowerment and Ministry of Women and Child Development, enforce rights, provide scholarships, and implement socioeconomic empowerment programs.

Welfare Bodies for SC/ST/OBC

These organizations work to safeguard rights, prevent exploitation, and ensure educational and economic advancement:

- **National Commission for Scheduled Castes (NCSC):** Protects the interests of SC communities, handles grievances, and reviews policies.
- **National Commission for Scheduled Tribes (NCST):** Dedicated to the welfare and rights of scheduled tribes.
- **National Commission for Backward Classes (NCBC):** Constitutional body investigating, monitoring, and advising on socio-economic development of OBCs.
- **Scheduled Castes Development (SCD) Bureau:** Implements educational (scholarships, hostels) and economic empowerment schemes.
- **National Scheduled Castes Finance and Development Corporation (NSCFDC):** Provides financial assistance for self-employment.

- **SC/ST/OBC Cells:** Established in educational institutions and workplaces to handle complaints and monitor reservation policies.

Welfare Bodies for Women

- **National Commission for Women (NCW):** A statutory body focused on reviewing constitutional/legal safeguards for women, recommending remedial measures, and addressing grievances.
- **Ministry of Women and Child Development (MWCD):** Implements schemes for empowerment, including safety initiatives and skill development.
- **Internal Complaints Committee (ICC):** Mandatory in workplaces to prevent sexual harassment and ensure safety.
- **National Mission for Empowerment of Women (NMEW):** Aims to ensure holistic empowerment.

Key Initiatives and Support

- **Educational Support:** Pre-matric/post-matric scholarships, hostels, and remedial coaching for SC/ST/OBC students.
- **Economic Empowerment:** Skill development, subsidies, and loans for startups and entrepreneurship (e.g., PMEGP).
- **Legal Protection:** Specialized cells in institutions to prevent discrimination, harassment, and ragging.
- **Policy Implementation:** Reservation in government jobs and education, with specific budgetary allocations like the Scheduled Caste Sub Plan (SCSP).
